

Brij Lal Gupta v. State of U.P. & 5 Others

Allahabad High Court · Division Bench · 14 February 2023 · Writ - C No. 3279 of 2023 · **Writ disposed of by consent; petitioner to move a representation within two weeks for easy instalments under Clause 6.14; recovery orders not quashed**

HEADNOTE

Where the holder of a 1982 domestic connection claims he sold the house in 1995, but concedes that he never applied for disconnection and never informed the licensee, and standing counsel states on instructions that the connection continued until the purchaser's new connection on 20 February 2006 with the regular bills for that interval unpaid, the writ court will not try that disputed question of fact. The submission that, absent permanent disconnection, liability fastens only on the owner was counsel's, and was not adopted as a construction of the Code. By consent the writ is disposed of: the petitioner is to move a fresh representation before the competent authority within two weeks, and the Court hopes and trusts that easy instalments will then be fixed under Clause 6.14 of the U.P. Electricity Supply Code, 2005. The orders of 18 August 2022 and 8 December 2022 are not quashed, the interim restraint on auction is not continued, and the Court does not itself fix the instalments or decide the quantum.

FACTUAL SUMMARY

Brij Lal Gupta held connection No. 906/1503/007035 from 14 April 1982 at his house in village Sirsa, Meja, Prayagraj. He claims he paid the bills until 1995 and then sold the house to Smt. Suman Devi, who took a new connection in 2006. He never applied for disconnection, and counsel conceded that the department was never told of the sale. Standing counsel stated, on instructions, that the connection ran until 20 February 2006, when Smt. Suman Devi (wife of Gorakh Nath) received a new connection, and that the 1995–2006 bills were unpaid.

The Sub-Divisional Magistrate, Meja, issued a recovery certificate on 19 July 2022 and on 18 August 2022 directed its entry against Gata Nos. 711 and 713 Kha. After Writ-C No. 24287 of 2022 was disposed of on 6 September 2022 with liberty to represent and a two-month pause on the certificate, the Executive Engineer on 8 December 2022 asked Gupta to deposit the modified bill so that withdrawal could be sought. This writ seeks quashing of both orders and a restraint on sale of those plots.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Disputed liability after an alleged sale is not tried in writ; by consent the consumer is sent to seek easy instalments under Clause 6.14

QUESTION

Where the registered consumer never sought disconnection and never informed the licensee of an alleged 1995 sale, will the writ court quash recovery of the unpaid bills up to the purchaser's new connection, or leave him to seek instalments under Clause 6.14?

HOLDING

It will not quash the recovery on that plea. The Court declined to interfere in the disputed question of fact. Counsel for the petitioner then asked for relief under Clause 6.14 of the U.P. Electricity Supply Code, 2005. Standing counsel had no objection to the dispute being settled in accordance with law. With the consent of the parties the writ was disposed of, directing the petitioner to file a fresh application or representation before the competent authority within two weeks. If he does, the Court hoped and trusted that easy instalments would be fixed under Clause 6.14. The orders dated 18.08.2022 and 08.12.2022 were not quashed. ¶ 6-8

QUALIFIER

The statement that, absent permanent disconnection, liability fastens only on the owner was standing counsel's submission. The Court did not adopt it or cite a permanent-disconnection clause. 'Hope and trust'

does not itself fix the number or amount of instalments and does not continue the 31.1.2023 restraint on auction. The Court labelled the clause 'Section 6.14'.

FLAG The disposing order of 14.2.2023 (Mahesh Chandra Tripathi and Vivek Kumar Singh, JJ.) is unnumbered. Paragraph numbers are sequential blocks of that order: (1) counsel heard; (2) prayers — certiorari of the orders of 18.08.2022 (respondent no. 3, S.D.M., Meja) and 08.12.2022 (respondent no. 5, Executive Engineer), and mandamus against coercive sale of Gata No. 711 (O.0110 Hec.) and 713 Kha (O.0170 Hec.); (3) facts, connection No. 906/1503/007035 of 14.04.1982, claimed payments till 1995, sale to Smt. Suman Devi, her connection in 2006, recovery certificate of 19.07.2022, S.D.M. order of 18.08.2022, extraction of the 06.09.2022 order in Writ-C No. 24287 of 2022, and the Executive Engineer's communication of 08.12.2022; (4) argument that the 1995–2006 demand is arbitrary; (5) query on disconnection, concession that the department was never informed of the sale, and the submission that liability cannot rest on technical flaws; (6) standing counsel's instructions (connection continued till 20.02.2006; Smt. Suman Devi, wife of Gorakh Nath, connected that day; 1995–2006 bills unpaid; absent permanent disconnection, liability only on the owner), the Court's decline to interfere in the disputed question of fact, and the request under Clause 6.14; (7) no objection to settlement in accordance with law; (8) consent disposal and the hope that easy instalments be fixed under Clause 6.14. The same PDF opens with the 31.1.2023 order of Manoj Kumar Gupta and Vikram D. Chauhan, JJ.: time for instructions, list on 14.2.2023, Pankaj Srivastava to be shown for respondent no. 5, and no auction of the attached property in the meantime. The prayer prints 'Purvanchal Vidyut, Vitran Nigam, Limited'. No precedent is cited. The fingerprint has no Indian Kanoon doc-id.

PRINCIPLE TAGS

installment-payment-clause-6.14 After the Court declined to try the disputed facts, and with the licensee's no-objection, the writ was disposed of by sending the consumer to the competent authority. If a representation was moved within two weeks, the Court hoped and trusted that easy instalments would be fixed under Clause 6.14. It did not itself structure the instalments. ¶ 6-8

disputed-questions-of-fact-not-adjudicable-under-article-226 Whether the 1995 sale, without an application for disconnection or intimation to the department, ended liability for bills until the purchaser's connection on 20 February 2006 was treated as a disputed question of fact. The Court declined to interfere and did not quash the recovery. ¶ 6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED 1995 SALE, WITHOUT DISCONNECTION OR INTIMATION, ABSOLVED THE PETITIONER OF DUES FROM 1995 TO 20 FEBRUARY 2006, AND WHETHER LIABILITY IN THE ABSENCE OF PERMANENT DISCONNECTION FASTENS ONLY ON THE OWNER

Standing counsel so submitted. The Court declined to interfere in the disputed question of fact and did not construe any permanent-disconnection clause. The petitioner's point that a huge liability cannot rest on a technical flaw was likewise not decided. ¶ 5-6

NOT DECIDED — VALIDITY AND QUANTUM OF THE RECOVERY CERTIFICATE DATED 19.07.2022, THE SUB-DIVISIONAL MAGISTRATE'S ORDER DATED 18.08.2022, AND THE EXECUTIVE ENGINEER'S ORDER DATED 08.12.2022, INCLUDING WHETHER THAT ORDER WAS THE REASONED SPEAKING ORDER REQUIRED ON 06.09.2022

Writ-C No. 24287 of 2022 had required respondent no. 5 to pass a reasoned order on a representation and had kept the certificate in abeyance for two months. Neither later order was quashed or examined on merits. This writ was disposed of on the Clause 6.14 representation. ¶ 2-3, 8

NOT DECIDED — THE NUMBER, AMOUNT, OR CONDITIONS OF ANY INSTALMENTS UNDER CLAUSE 6.14, AND WHETHER RECOVERY OR AUCTION REMAINS STAYED ONCE A REPRESENTATION IS FILED

The operative words are hope and trust that easy instalments shall be fixed. The 31.1.2023 order restrained auction only until the next listing. The disposal does not continue that restraint and does not direct withdrawal of the certificate. ¶ 8